

SENATE No. 2724

The Commonwealth of Massachusetts

—
In the One Hundred and Ninety-Fourth General Court
(2025-2026)
—

SENATE, November 17, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill authorizing the commissioner of capital asset management and maintenance to convey a certain parcel of land in the town of Wellesley (House, No. 4363); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2724.

For the committee,
Michael J. Rodrigues

SENATE No. 2724

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

1 SECTION 1. Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General
2 Laws or any other general or special law to the contrary, the commissioner of capital asset
3 management and maintenance, in consultation with Massachusetts Bay Community College,
4 may convey to Kimberlee A. Dow or her successors or assigns, of 23 Oakland circle in the town
5 of Wellesley, a certain parcel of land, which is a portion of the land described in a deed recorded
6 with the Norfolk registry of deeds in book 4990, page 254, located in the town of Wellesley,
7 which is currently used for community college purposes under the care and control of
8 Massachusetts Bay Community College. The parcel contains 3,500 square feet more or less and
9 is identified as “Gravel Driveway” on a draft plan on file with the division of capital asset
10 management and maintenance entitled, “Plan of Land 23 Oakland Circle Wellesley, Norfolk
11 County, Massachusetts”, dated May 7, 2024, prepared by Anderson Surveys, Inc.; provided,
12 however, that the exact boundaries of the parcel shall be determined by the commissioner of
13 capital asset management and maintenance. The conveyance shall be without representations or
14 warranties and shall be subject to any additional terms and conditions as the commissioner of
15 capital asset management and maintenance may deem necessary.

16 SECTION 2. Consideration for the conveyance of the parcel authorized in section 1 shall
17 be the fair market value of the parcel or the value in proposed use of the parcel, whichever is

greater, as determined by the commissioner of capital asset management and maintenance based upon an independent appraisal of the fair market value and value in proposed use of the parcel, which shall be prepared in accordance with the usual and customary professional appraisal practices by a qualified appraiser commissioned by the commissioner of capital asset management and maintenance. The commissioner of capital asset management and maintenance shall submit the appraisal to the inspector general for the inspector general's review and comment. The inspector general shall review and approve the appraisal; provided, however, that such review shall include an examination of the methodology utilized for the appraisal; and provided further, that the inspector general shall prepare a report of their review and file the report with the commissioner of capital asset management and maintenance for submission by the commissioner to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight. The commissioner shall submit copies of the appraisals and the inspector general's report and comments, if any, to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight not less than 15 days prior to the execution of documents effecting the transfer described in section 1.

SECTION 3. The proceeds realized from the conveyance authorized in section 1 shall be deposited in the Massachusetts Bay Community College Oakland Circle Scholarship Trust established in section 5.

SECTION 4. Notwithstanding any general or special law to the contrary, Kimberlee A. Dow or her successors or assigns shall be responsible for all costs and expenses of any transaction authorized by this act as determined by the commissioner of capital asset

management and maintenance, including, but not limited to, the costs of any engineering, surveys, appraisals, title examinations, recording fees and deed preparation.

SECTION 5. (a) There shall be established and set up on the books of the commonwealth an expendable trust account known as the Massachusetts Bay Community College Oakland Circle Scholarship Trust, which shall be administered by the president of Massachusetts Bay Community College. The trust shall be credited with: (i) the proceeds realized from the conveyance authorized in section 1; (ii) any appropriation, grant, gift or other contribution made to the fund; and (iii) any interest earned on money in the fund.

(b) Amounts credited to the trust shall be expended, without further appropriation, for scholarships for students enrolled at Massachusetts Bay Community College. The unexpended balance in the trust at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure made from the trust shall cause the fund to be in deficit at any point.